CITY OF OPA-LOCKA

"The Great City"

Clerk's Action Summary Minutes
Regular Commission Meeting
May 27, 2009
7:00 p.m.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, Florida 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:04 p.m. on Wednesday, March 27, 2009 in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Rose Tydus, Vice Mayor Myra L. Taylor, Commissioner Timothy Holmes, Commissioner Dorothy Johnson and Mayor Joseph L. Kelley. Also in attendance were: Interim City Manager Bryan K. Finnie, City Attorney Burnadette Norris-Weeks and City Clerk Deborah S. Irby.

3. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

Following the pledge, the City Commission paused for a moment of silence in memory of the late Honorable Brain Hooten.

5. APPROVAL OF AGENDA:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Vice Mayor Taylor pulled agenda item 15-2 and Commissioner Johnson pulled agenda item 15-5 form the Consent Agenda.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

8. APPROVAL OF MINUTES:

Special Commission Meeting – May 11, 2009
Regular Commission Meeting – May 13, 2009

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the minutes of the Special Commission Meeting of May 11, 2009 and the Regular Commission Meeting of May 13, 2009.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

9. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Marc Brown, Assistant to District 1 Miami-Dade County Commissioner Barbara Jordan came forward and gave a follow-up to the Miami-Dade County Opa-locka Beatification and Rehabilitation projects.

10. PUBLIC PRESENTATION:

10a. CITIZENS' FORUM:

Alvin Burke of 540 Curtiss Drive, Opa-locka, Florida appeared before the City Commission and requested an update on the monies being collected from the police officers who received a hiring bonus and have since left the city. Additionally, he expressed his concerns relating to the Planning Council not meeting and continued by asking for an update.

Commissioner Holmes requested that Mr. Burke provide the citizens with information regarding the food available.

Mr. Burke announced that 32 boxes of food were donated to the city as a result of his and Commissioner Holmes efforts.

Mayor Kelley requested that Mr. Finnie address Mr. Burke's concern about the Planning Council because the city did hire a firm.

With regards to the first issue raised reference the police officers, Manager. Finnie advised that the city is involved in active litigation with the officers who have not lived up to their obligation.

Octavian Spanner, Director of Planning and Community Development for the City of Opa-locka came forward and stated that indeed the Commission hired a professional planning consulting firm. Upon adoption of the resolution, there's a process to be followed for reviewing the scope of services and a few other items. He said city staff met with the firm approximately two weeks ago to go over a series of Planning Council items and they are scheduled to meet with the City Manager and City Attorney to go over each item.

Manager Finnie said the city didn't add any items to the contract but defined and refined what the requests were and in that process, staff had to sit with the planner to brief the planner on each action item, make modifications as necessary to prepare those items to go before the Planning Council.

Mayor Kelley asked whether there had been communication between what the City Manager is saying and the Planning Council.

Manager Finnie responded that he had plans on starting that communication subsequent to the meeting with the City Manager's Office and once the agenda items are discussed, staff would ask that the chairman of the Planning Council convene a meeting at which time staff would make a presentation.

Mayor Kelley expressed his concern relating to the lack of communication with the board members advising them as to where the city is in the process. He further suggested that the communication with the Planning Council take place so that those members are aware.

Commissioner Johnson requested that all members of the Planning Council receive information at the same time.

Commissioner Tydus asked for clarification as to whether the Planning Council meet on a regular scheduled date and time as specified in the code or do they meet upon application for a certain issue?

Attorney Weeks indicated that there is a day specified in either the city's Charter or Code and the Planning Council does meet on an as needed basis if there's an item to go before the board.

Mr. Spanner advised that the Planning Council meets on the second Tuesday of the month; however, if there's a need for a special meeting then staff would request a special hearing for urgent items. The Planning Council meets only if there's an application or solicitation for the Planning Council, if not, then the meeting is deferred.

Mayor Kelley directed the City Manager to make sure staff communicates with the Planning Council to keep them updated.

The Battalion Chief for Miami-Dade Fire Rescue was present to offer their assistance and address any concerns.

11. ACTION ITEMS (items from consent agenda pull list):

15-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING A WALK PATH MEMORIAL FOR DECEASED EMPLOYEES OF THE CITY OF OPA-LOCKA TO BEGIN WITH THE YEAR 2008 AND GOING FORWARD. *Sponsored by D.J.*

The above resolution was read by title by Attorney Weeks.

It was moved by Vice Mayor Taylor, seconded by Commission Johnson to pass the above resolution.

During the commission meeting of May 13, 2009 as reflected on page 7 of the minutes, Vice Mayor Taylor indicated that there was discussion, and Commissioner Johnson at that time suggested the veteran's resolution be brought back and the walk path memorial be incorporated into it.

Through discovery, Commissioner Johnson said staff was unable to find a resolution which mentioned a Veterans Garden; therefore, perhaps a resolution would come back for the Veterans Garden and the Commission can incorporate both projects.

Vice Mayor Taylor asked that Commissioner Johnson consider beginning with the year 2000 as oppose to the year 2008.

Commissioner Johnson said that the Commission members are employees of the city and she didn't think it was necessary to specify commissioner versus employee. Secondly, she didn't want to limit the beginning year; however, she wasn't sure the city had solid documentation on employees who deceased prior to. Should there be documentation, by all means, she agreed to enhance the year beginning with 2000 which would include all commissioners as well.

Vice Mayor Taylor said that the City Clerk's Office should have documentation on the city employees who have deceased.

Commissioner Johnson stated that normally the Human Resources professional should have the information in the employee's file; however, she doesn't know the duration period for employee files.

Mayor Kelley asked, how long does the city go back in terms of employee files?

Manager Finnie advised that the Human Resources Director was not present; therefore, he would have to research and get back to the Commission.

Commissioner Holmes suggested that the resolution reflect the beginning date of 1980.

Vice Mayor Taylor recommended that the resolution reflect the beginning date to as far as the city can go back.

Commissioner Johnson agreed with Vice Mayor Taylor's recommendation to go as far as possible with supported documentation.

Following brief discussion, the City Commission asked that the City Attorney provide the wording for the amendment. Attorney Weeks suggested that the resolution be amended to substitute "2008" with the following language: "as far as there is record documentation".

It was moved by Commissioner Johnson, seconded by Commissioner Tydus to amend the resolution to include the wording stated above by the City Attorney.

The amendment passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

There being no further discussion, the original motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

Commissioner Holmes suggested that the Commission come up with a name for the pavilion at Sherbondy Park.

15-5: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, SUPPORTING AND APPROVING THE CITY MANAGER'S REVISIONS TO ADMINISTRATIVE REGULATION 3-301 REGARDING ANNUAL LEAVE FOR CITY EMPLOYEES. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Tydus, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Tydus asked if the additional background information provided to the Commission for this particular item different from what was in the agenda package.

Manager Finnie advised that the additional information summarizes what is in the agenda package.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

12. NEW ITEMS:

13. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

14. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA APPROVING THE DUAL DESIGNATION OF ORIENTAL BOULEVARD FROM NW 17TH AVENUE TO NW 37TH AVENUE AS "THE HONORABLE TIMOTHY HOLMES BOULEVARD"; PROVIDING FOR REPEAL OF ALL ORDINANCES IN CONFLICT; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE.

The above ordinance was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above ordinance on first reading.

Commissioner Johnson expressed her concerns relating to the ordinance not reflecting the sponsor.

Vice Mayor Taylor informed the Commission that she is the sponsor of the above ordinance.

Commissioner Tydus made reference to a previous commission meeting where all members of the Commission who were in attendance discussed and agreed not to bring forth any other streetnaming. At that time she didn't feel the need to bring back legislation to that effect since those streetnaming considerations were the last; however, she is not sure at what point that all changed.

She continued by voicing her concerns relating to the city already expending $50,000.00 of undesignated dollars for streetnamings.

Although Vice Mayor Taylor had agreed not to sponsor any additional legislation for streetnaming, she said she had just one more streetnaming she had to do which is worth doing.

With all due respect, Mayor Kelley suggested that Commissioner Holmes excuse himself from the Commission Chambers since the issue was dealing with him.

Vice Mayor Taylor agreed with Mayor Kelley and suggested that Commissioner Holmes excuse himself and step out of the room.

Commissioner Holmes attempted to respond but Mayor Kelley interjected stating that he didn't want Commissioner Holmes to respond.

Vice Mayor Taylor pleaded to Commissioner Holmes so that he wouldn't respond. She said she was responsible for this legislation and Mayor Kelley is right; therefore, she would like to proceed with the ordinance with Commissioner Holmes out of the room.

Commissioner Holmes said he didn't think it was necessary for him to leave the room because he has been involved in this city since 1983, elected Vice Mayor in 1994 and has been there ever since. Additionally, if his wife didn't want to see this particular item, having a street named after her husband, he wouldn't worry about it.

Because the item dealt with Commissioner Holmes, Mayor Kelley said it would be best if he (Holmes) left the room during discussion on this item.

Commissioner Holmes left the room after making his statement.

Vice Mayor Taylor apologized to Commissioner Tydus if it appeared that she went back on her word and stated that this is a worthwhile ordinance. She asked for the support and cooperation of her colleagues on this particular ordinance.

Commissioner Tydus stated that there were no words she could use to express that this is not personal and the Commission will notice since her conviction concerning streetnaming, she has not attended one streetnaming ceremony since then. She expressed her concerns relating to the $50,000.00 spent which could have been utilized in other ways to better serve the citizens of this community. The Commission has not acted responsibly in this streetnaming frenzy and she personally will not continue to engage in it.

Being the sponsor of the $50,000.00 streetnaming dedication honoring President Barack Obama, Commissioner Johnson requested that the City Manager bring back a report on the expenditures and contributions because this is no different than the community garden for $48,000.00. She said the named individual is warrant and if agreed, she would like to bring closure on streetnaming although she has one more streetnaming she would like to do for Barrington Irving.

In all due respect to Vice Mayor Taylor since this is her second streetnaming, Commissioner Johnson said she would consider the ordinance; however, she would not support any future streetnamings. Should the Commission have to bring back legislation to cease with the streetnamings for several years then they need to go ahead and do it.

Mayor Kelley stated that the discussion did come up at a previous meeting and it was said then because there might have been one or two more streetnamings out there not to put a motion on the floor at that meeting to allow that to occur. He said that he had not named any street after anyone.

He directed the City Attorney to start working on legislation to put a hold on streetnamings. He said he would get with the City Attorney to work on that legislation to bring back before the Commission.

Commissioner Tydus clarified that she didn't know what the cost of the President Obama streetnaming was but she wasn't insinuating that it was $50,000.00.

There being no further discussion, the motion passed by a 3-1 vote.

Commissioner Johnson	Yes
Commissioner Tydus	No
Vice Mayor Taylor	Yes
Commissioner Holmes	Out of Room
Mayor Kelley	Yes

Commissioner Holmes re-entered the room.

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA; AMENDING CHAPTER 7, ARTICLE V, OF THE OPA-LOCKA CODE OF ORDINANCES ENTITLED "DANGEROUS OR SUBSTANDARD STRUCTURES" BY AMENDING SECTION 7-65 ENTITLED "DEFINED" AND PROVIDING FOR DEFINION OF "BLIGHTED STRUCTURES"; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

B. SECOND READING/PUBLIC HEARING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AMENDING ORDINANCE 08-13, THE GENERAL FUND BUDGET FOR THE FISCAL YEAR COMMENCING OCTOBER 1, 2008 AND ENDING SPETEMBER 30, 2009, ADJUSTING REVENUES AND EXPENDITURES AS SET FORTH AND ATTACHED IN EXHIBIT "A"; REFLECTING AN INCREASE IN REVENUE SOURCES IN THE AMOUNT OF FOUR HUNDRED FORTY ONE THOUSAND TWO HUNDRED AND SEVENTY SEVEN DOLLARS ($441,277.00); PROVIDING FOR REPEAL OF ALL ORDINANCES IN CONFLICT; PROVIDING FOR AN EFFECTIVE DATE (first reading held on May 13, 2009). *Sponsored by C.M.*

The above ordinance was read by title by Attorney Weeks.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the ordinance.

Vice Mayor Taylor reiterated her concern from the last meeting during first reading of the above ordinance wherein the title reflects the word "increase" and the body doesn't. She suggested that the same word is used in the body of the ordinance.

Attorney Weeks advised that she would make the body of the ordinance consistent with the title and it wouldn't have an impact.

There being no further discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AMENDING ORDINANCE 08-14, THE PROPRIETARY AND SPECIAL REVENUE FUNDS BUDGET FOR THE FISCAL YEAR COMMENCING OCTOBER 1, 2008, AND ENDING SEPTEMBER 30, 2009, ADJUSTING REVENUES AND EXPENDITURES AS SET FORTH AND ATTACHED IN EXHIBIT "A"; REFLECTING CHANGES IN REVENUE SOURCES AS FOLLOWS: CAPITAL IMPROVEMENT DEBT SERVICE (FUND 230), NINETY THREE THOUSAND TWO HUNDRED AND FORTY DOLLARS ($93,240.00); CAPITAL ACQUISITION (FUND 310), THREE HUNDRED AND FIFTY DOLLARS ($350.00); CAPITAL PROJECTS (FUND 320), FOUR HUNDRED AND FIFTY THOUSAND DOLLARS ($450,000.00); SOLID WASTE (FUND 410), FIFTEEN THOUSAND FIVE HUNDRED DOLLARS ($15,500.00); WATER AND SEWER (FUND 440), ONE HUNDRED AND FIFTY THOUSAND DOLLARS ($150,000.00); SPECIAL LAW ENFORCEMENT (FUND 165), TWO THOUSAND ONE HUNDRED DOLLARS ($2,100.00); FEDERAL EMERGENCY MANAGEMENT (FUND 169), ONE HUNDRED AND SIXTY THOUSAND DOLLARS ($160,000.00); DJJ OPA-LOCKA YOUTH ACADEMY (FUND 171), ONE HUNDRED AND EIGHTY THOUSAND THREE HUNDRED AND NINETEEN DOLLARS ($180,319.00); CRIME PREVENTION (FUND 172), THIRTY FIVE THOUSAND DOLLARS ($35,000.00); PEOPLES TRANSPORTATION TAX (FUND 176), SEVEN HUNDRED FOUR THOUSAND THREE HUNDRED EIGHTY TWO DOLLARS ($704,382.00); PROVIDING FOR REPEAL OF ALL ORDINANCES IN CONFLICT; PROVIDING FOR AN EFFECTIVE DATE (first reading held on May 13, 2009). *Sponsored by C.M.*

The above ordinance was read by title by Attorney Weeks.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above ordinance.

In the future, Commissioner Johnson suggested that all supporting documentation for agenda items is provided in advance and not prior to the commencement of the meeting in which the item would be heard in order to allow for review

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

C. RESOLUTION(S):

15. ADMINISTRATION:

CONSENT AGENDA:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DIRECTING THE INTERIM CITY MANAGER TO LIMIT HIRING OF CERTAIN CITY STAFF FOR THE REMAINDER OF THE FISCAL YEAR ENDING SEPTEMBER 30, 2009. *Sponsored by J.K.*

3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO SETTLE THE PENDING LAWSUIT BROUGHT BY NIKEYA HILL IN EXCHANGE FOR A RELEASE SETTLEMENT. *Sponsored by C.M.*

4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO SETTLE THE PENDING LAWSUIT BROUGHT BY NATALIE BUISSERETH IN EXCHANGE FOR A RELEASE SETTLEMENT AGREEMENT. *Sponsored by C.M.*

6. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE MODIFICATION # 3 TO PRE-DISASTER GRANT AGREEMENT NO. 07DM-64-11-02-12-373 BETWEEN THE CITY OF OPA-LOCKA AND THE STATE OF FLORIDA DIVISION OF EMERGENCY MANAGEMENT (DEM) FOR THE ALEXANDRIA GARDENS APARTMENT DRAINAGE PROJECT. *Sponsored by C.M.*

The above consent agenda resolutions were read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the consent agenda resolutions.

The motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes

Commissioner Holmes	Yes
Mayor Kelley	Yes

A. CITY MANAGER'S REPORT:

Manager Finnie announced that staff was planning a retreat on June 17, 2009 to review the elements of the Strategic Plan.

He continued by inviting Chief Ballentine and Mr. Larralde to come forward.

Bernie Larralde, Information Technology, City of Opa-locka and Chief Rodney Ballentine of the Opa-locka Police Department came forward and provided a brief update on the OSSI Records Management System which allows for the automation of police records.

Commissioner Johnson requested a written report on the capabilities of the new system.

With the new records management system, Manager Finnie stated that the police department is one step closer to accreditation.

Chief Ballentine briefed the Commission on the Auto Task Force in which the Opa-locka Police Department in conjunction with Miami-Dade County and the City of Opa-locka Code Enforcement Department conducted business checks on Cairo Lane.

As it relates to the timeline for the demolition of the water plant on Burlington Street where it talked about the June 2009 date for clearing the debris from the site, Vice Mayor Taylor informed the City Manager of a sink hole on private property near the Miller/Segal Park. She asked the City Manager to look into taking some of the dirt from the water plant site to fill the hole.

Manager Finnie said he would consult with the Public Works Department. He suggested that Vice Mayor Taylor allow him to look into this matter.

Vice Mayor Taylor requested that the City Manager look into the business on NW 32nd Avenue, south of the pallet business, where the owners are allowed to stack the trailers two high but the trailers are being stacked three high. Also, she recommended that the rangers take a look at the Golf Course property off of NW 37th Avenue because the metal rail is broken and the fence is down which should be repaired to improve the image of the city. As it relates to the rangers, she said she felt as if each ranger should have a zone but since there are four rangers and five zones, some of the rangers would have to double up zones.

In the interest of Going Green, she further asked that the City Manager look into the city having a four day work week except for certain personnel.

Mayor Kelley advised that the City Manager is already looking into the four day work week and that item is currently pending.

Commissioner Johnson thanked the City Manager for the job descriptions although she didn't have the opportunity to review the information. She provided the date of June 9, 2009 to meet with the appointed officials individually for their mid year evaluation.

She expressed the need for a railing and trees along the South side of the Burlington Street canal, requested additional information on Hurricane Preparedness other than what had already been included on the utility bill and suggested that a workshop is held for the citizens. Additionally, she requested a Hurricane Preparedness package.

Manager Finnie informed Commissioner Johnson that she would be receiving a telephone call to schedule a meeting for Monday, June 1, 2009 to brief her on the final complete package prior to releasing it.

Commissioner Johnson voiced her concerns about the garbage & trash schedule and expressed the need for an accurate schedule for the residents. This information should also be made available on the city's website and posted for easy access.

She spoke about the need to enforce the ordinances adopted several years ago relating to nuisances, apartments, painting and dumpster enclosures. She further asked for an update on the Opa Hotel property on Perviz Avenue in which the City Manager was suppose to research.

Commissioner Tydus advised that she had received a written complaint from a resident about a restaurant operating as a night club.

Manager Finnie stated that the city had dealt with a number of issues with restaurants and she is not familiar with the particular issue Commissioner Tydus is referring to.

Commissioner Tydus said she would get with the City Manager and compare notes to see if it is the same situation.

She continued by requesting that the Welcome signs into the city, more specifically the one on Sharazad Boulevard and NW 27th Avenue, be cleaned.

Commissioner Holmes expressed his concerns relating to flooding near the gas pumps at the Public Works Department which should not occur because the police officers, etc. have to step in water to pump gas; the numerous complaints received regarding high water bills and his request at the last meeting for the City Manager to find out the feasibility of Miami-Dade County to take over the city's water operations for a possible reduction in cost to the citizens.

Manager Finnie said he did contact Miami-Dade County and he does have an answer; however, he would like to prepare a memorandum with that information.

Commissioner Holmes asked for an update on Curtiss Drive.

Manager Finnie stated that he had offered resolutions and the people on Curtiss Drive have rejected those resolutions. The city asked them to give the city a resolution except for redoing the entire street because the city doesn't have the resources for that.

As it related to Atlas Packaging Company where a groundbreaking was held a couple weeks ago, Commissioner Holmes said that the owner contacted him to find out if Pump Station # 14 would be operational by the completion of the company's new building. He directed the City Manager to contact the owner for an update.

Manager Finnie agreed to contact Atlas Packaging Company for a status report.

Commissioner Holmes requested that the City Manager follow up on the cameras at traffic lights throughout Opa-locka.

Manager Finnie responded that the city's work on the red light system is well on its way and advance. The city already tested and knows the potential revenue from each intersection. He asked that the Commission allow him to brief each member of the Commission individually.

Commissioner Holmes spoke about a resident on Rutland Street whose neighbor moved the fence over the water meter and on her property. He asked if Code Enforcement had resolved the issue.

Manager Finnie advised that Code Enforcement visited the property and verified the resident's story and somehow the neighbor did move his fence beyond the water meter; therefore, the city is working on this matter.

Commissioner Holmes asked for an update on his previous request for return envelopes as a part of the monthly utility billings.

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and informed the Commission that the return envelopes is a part of the contract with Municipal Code Corporation for processing of utility bills.

Manager Finnie advised that the city is in the process of having a firm do the city's mailing for utility bills and the return envelopes would be included.

Commissioner Holmes announced that a memorial service for the Honorable Brian Hooten would be held on Friday, May 29, 2009 from 6:00 p.m. – 10:00 p.m. at 1100 Sharazad Boulevard. He requested that the city provide chairs and sodas for the service. He provided an overview of Mr. Hooten's accomplishments and contributions to the city.

He further announced that the first 30 persons to call the City Clerk's Office and leave their names would get a box of food.

Mayor Kelley directed the City Manager to work on the re-opening of Ingram Park because the park is currently being used on a daily basis but there are citizens still not aware of the improvements. Also, he asked for an update on the commencement of Segal Park improvements.

Manager Finnie said he would get back with the Commission on the date for the Ingram Park event. As it relates to Segal Park Improvements, he explained that he is waiting on a reply from OCED as it relates to the city's request to self construct the park which he anticipates on receiving within the next two weeks; then he would be able to provide a construction start date.

As it relates to the sink hole mentioned earlier by Vice Mayor Taylor, Mayor Kelley said the only reason the city didn't fill it up with dirt is because it's private property which is being sold and there was some issue about liability. He directed the City Manager to go back and revisit the issue.

Vice Mayor Taylor added that there's also an issue with the Helen L. Miller Center because the building is sinking.

Mayor Kelley's purpose for bringing up Segal Park Improvements was because the Helen L. Miller Center is a part of that project and the building is still being rented out. Whenever the city gets to the point of starting construction then it will have to stop renting out the building.

In looking at diagrams, Commissioner Johnson said the Helen L. Miller Center was suppose to be a two story building and she doesn't know how it got to be a one story building.

Manager Finnie said he hadn't seen a diagram for the structure.

Commissioner Johnson asked that the City Clerk share the diagram with the City Manager of the Helen L. Miller Center. She directed the City Manager to research this issue to see what happened so that it can be rectified.

Once the building is shut down, Mayor Kelley said most of the work would be drainage; however, he doesn't know what that is going to do in terms of the building once the city gets started. All he is saying is that the city needs to start the process.

Mayor Kelley spoke on the grant opportunities and the updated list provided by the City Manager.

Manager Finnie informed the Commission that he would provide at the next commission meeting an update of that chart because there have been four or five additional grant submissions.

Mayor Kelley explained that he only brought up this issue because some of the grants are dealing with foreclosure and other outstanding issues that hopefully the city can get resolutions on.

He continued by saying, with regards to the earlier concern about a concise schedule for garbage & trash pick up, that this issue came up at one of the Crime Watch meetings and this individual was told that the recycling day was changed. The city must make sure that if the schedule is changing that the information is sent out to everyone and that the change goes through the City Manager.

Manager Finnie responded by saying that he would know if there's a change to that schedule.

Commissioner Johnson further expressed her concerns regarding the change to the schedule for trash & garbage pick up and the making sure the residents as well as all city personnel receive the correct information.

Mayor Kelley directed the City Manager to make sure the information is accurate because the concern did come up at the Crime Watch meeting. Additionally, he suggested that the City Manager or a representative is present at all Crime Watch meetings to address any concerns the citizens may have.

Finally, as it relates to the rangers, Code Enforcement and the city's plan, Mayor Kelley expressed his concerns about the elected officials having to point out items that are obvious. In the workshop and subsequently, the Commission was told that there are employees out every morning riding throughout the city and based on that, send out individuals to clean, etc. Over the last couple of weeks, he observed personnel riding throughout the city but several days later he looks at the same streets and he doesn't see the items being addressed. He said he didn't see how that structure was working but obviously there's a breakdown.

He continued by saying that if the rangers are out there because they are the eyes and ears and their focus is clean up and addressing city issues, a lot of things (i.e. rail in need of repair, canal needs to be cleaned, etc.) should be detected by them. Should the Commission call the City Manager about a specific item then it should already be in the process of being addressed. The Commission shouldn't have to point out issues throughout the city because that was the main purpose of hiring the rangers to address those very concerns and needs.

Manager Finnie agreed with Mayor Kelley that there is a breakdown. The city has a vision for the rangers which is to address small street level projects affecting residents; however, the urban rangers are housed at the Public Works Department and somehow

they end up supporting Public Works Department priorities or projects which they think are significant but are not street level projects. He said he would have to go back and recalibrate and the communication needs to be refined.

Vice Mayor Taylor stated that the whole point of the Urban Rangers being out there is to do so that everyone can see the improvement because it's a visible thing. She assumed that each ranger would be assigned to a zone and that ranger would work that zone.

Manager Finnie advised that the team of rangers work on a district each day and they are not individually assigned to one zone. He provided an example of some of the job assignments.

He publicly stated to the Commission that he would have to recalibrate and focus in on the visual activities.

Mayor Kelley said that the other part to this is Code Enforcement because they're supposed to report code issues throughout the city.

On any given day, Manager Finnie explained that there are about 1,000 things to do but only about 10 to 15 items would be addressed each day.

B. ACCOUNTS PAYABLE:

The City Commission instructed the city to pay its bills.

16. OFFICIAL BOARD REPORTS:

17. CITY ATTORNEY'S REPORT:

Commissioner Johnson asked for a written report on the issue with the hiring bonus to those police officers who have since left the Opa-locka Police Department.

Attorney Weeks agreed to have the written report for the next commission meeting scheduled for June 10, 2009.

Commissioner Johnson asked for the status on the pending charter items.

Attorney Weeks advised that the Commission would have to provide a few dates, possibly a Saturday, to spend a little more time to go through the items.

Commissioner Johnson suggested that the Commission come up with dates prior to the break.

Mayor Kelley explained that his goal was to try to do something prior to the August break but he was really trying to give the Commission a break from all the Saturday events; however, he thinking about possibly having it in July.

18. CITY CLERK'S REPORT:

Clerk Irby reported to the Commission that she had a telephone conference with the Census Office and they are ready to kick off the 2010 Census in the City of Opa-locka. She announced that she would like to have a Press Conference on June 4, 2009 at 11:00 a.m.

After brief discussion, the Commission advised that there was another event scheduled on June 4, 2009 at 10:00 a.m. It was suggested that the Press Conference be held at 9:30 a.m.

The Press Conference reference the Census 2010 was scheduled for Thursday, June 4, 2009 at 9:30 a.m. in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida.

Clerk Irby informed the Commission that the famous 2000 Census is currently being reviewed in the Atlanta Headquarters Office.

Commissioner Johnson directed the City Clerk, City Attorney and City Manager to provide Ms. Sha'mecca Lawson with a time certain on June 9, 2009 to conduct their performance evaluation.

Clerk Irby advised that she is scheduled to report for Jury Duty on June 8, 2009 and she doesn't know whether she has to return on June 9, 2009 or if she will be selected.

Mayor Kelley directed the City Clerk to check the boards schedule because he would like to schedule a date before June is out for the Hurricane Preparedness and hopefully by then they would have the package Commissioner Johnson made reference to.

19. MAYOR/COMMISSION REPORT:

Commissioner Holmes publicly thanked the Public Works Department and the Opa-locka Police Department for the barricades at Sharazad Boulevard and Codadad Street on behalf of the Hooten family so that guests would have a place to park on the street side.

He continued by thanking everyone who kept his family in prayers during his wife's illness during the past couple of months.

Commissioner Johnson reported that she is currently working with Miami-Dade County Teen Court through the Youth Prevention Coalition for four hour training during the summer.

She thanked Mayor Kelley for attending the Youth Prevention graduation on Saturday, May 23, 2009.

She announced the domestic violence community meeting on June 4, 2009 from 10:00 a.m. – 2:00 p.m.

She further reported her appointment to the Miami-Dade County Bar Association Citizen Advisory Council. Additionally, she is sponsoring the Pearls training with the young ladies and participated with the recruitment of summer jobs. She is also working with the Firefighters on a literacy project.

Commissioner Johnson reported that she met with a group of citizens who are formulating a new Homeowners Association focusing on Crime Watch. She said she would be a workshop presenter at the Florida Democratic Party Convention and the title of the Workshop is "Jump Start Your Destiny".

Mayor Kelley commended Commissioner Johnson on taking the initiative to represent the city at the Florida Democratic Party Convention.

He reported his attendance at the Crime Watch meetings, the Elders Workshop, the City of Miami Gardens Memorial Workshop, Mayor Gibson's State of the City Address and the business forum.

He invited all senior citizens to a fishing trip on June 25, 2009 and suggested that all interested persons contact the City Clerk's Office.

He further spoke about moving one of the commission meetings to the Senior Citizens Building and then periodically to various locations throughout the city.

20. OFFICIAL BOARD APPOINTMENTS:

21. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to adjourn the meeting at 8:46 p.m.

ATTEST:

CITY CLERK

MAYOR